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County: los-angeles

Division: Civil Law and Motion

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Case Number: 25PSCV00777 Hearing Date: July 1, 2026 Dept: G

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim
or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Armando
Geovani Rodriguez Estrada, a Minor

Respondent:

NO OPPOSITION

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim
or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Juan
Julian Rodriguez, a Minor

Respondent:

NO OPPOSITION

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim
or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Bella
Yesenia Rodriguez, a Minor

Respondent:

NO OPPOSITION

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim
or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Bonnie
Bonita Rodriguez, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Armando Geovani Rodriguez Estrada, a Minor is DENIED WITHOUT PREJUDICE.

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Juan Julian Rodriguez, a Minor is DENIED WITHOUT PREJUDICE.

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Bella Yesenia Rodriguez, a Minor is DENIED WITHOUT PREJUDICE.

Plaintiff/Petitioner

Abigail Yozabeth Estrada Farias's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Plaintiff/Claimant Bonnie Bonita Rodriguez, a Minor is DENIED WITHOUT PREJUDICE.

BACKGROUND

This

is a landlord-tenant action. Plaintiff/petitioner

Abigail Yozabeth Estrada Farias (Estrada) and plaintiff Geovanni Armando Rodriguez (Rodriguez) are the parents of minor children plaintiffs/claimants Armando Geovani Rodriguez Estrada, Juan Julian Rodriguez, Bella Yesenia Rodriguez, and Bonnie Bonita Rodriguez (collectively, Claimants). On January 15, 2024, Estrada, Rodriguez, and Claimants (collectively, the Rodriguez Family) allegedly entered into a written lease with defendants Group IX BP Properties, L.P. (Group IX), Michael Brown (Brown), and Regency Management XLIX, Inc. (Regency) for residential real property in Baldwin Park, California. The Rodriguez Family allegedly experienced inadequate, defective, and unsafe

plumbing; water leaks; deteriorating or ineffective weatherproofing and/or waterproofing; dampness, moisture, and mold; crumbling, cracked, and/or deteriorating walls, ceilings, and floors; a cockroach and bed bug infestation; and common areas in disrepair. On August 25, 2024, the Rodriguez Family allegedly complained about the condition of the property. Group IX, Brown, and Regency (collectively, Defendants) allegedly ignored the Rodriguez Family's complaint(s) and refused to repair the property. On September 11, 2024, Defendants served the Rodriguez Family with a 3-day notice to pay rent or quit. On September 20, 2024, Defendants allegedly initiated an unlawful detainer action against the Rodriguez Family. On February 3, 2025, the Rodriguez Family allegedly vacated the property.

On March 4, 2025, the Rodriguez Family filed the Complaint, alleging causes of action for (1) negligence, (2) tortious breach of the implied warranty of habitability, (3) breach of the implied warranty of habitability, (4) private nuisance, (5) breach of the covenant of quiet enjoyment, (6) intentional infliction of emotional distress, (7) unfair business practices in violation of the Unfair Competition Law, (8) violation of the Baldwin Park Rent Stabilization Ordinance, and (9) unlawful retaliatory eviction.

On April 15, 2026, the Rodriguez Family informed the court that the parties settled the case. On April 23, 2026, the court set the case for an order to show cause re: dismissal. On June 1, 2026, Estrada filed these petitions for approval of minor's compromise, which are unopposed. On June 8, 2026, the court continued the hearing on the petitions.

This case is set for an order to show cause re: dismissal and a continued hearing on the petitions on July 1, 2026.

ANALYSIS

Estrada seeks the court's approval of a settlement reached between the Rodriguez Family and Defendants. For the following reasons, the court DENIES the petitions.

Legal
Standard

An enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (Id. at 1606.)

Probate
Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person. (Prob. Code, § 3601, subd. (a).)

In cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the

attorney's fee would be affected by later events.” (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, Defendants agree to pay a total of \$360,000.00 to the Rodriguez Family, including \$10,000.00 to each of the Claimants. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, Attachs. 11b(5)–11b(6); but see, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, ¶ 10b, incorrectly stating that Defendants offer to pay \$360,000.00 to the claimant.) The petitions each request that \$4,000.00 be used for attorney's fees and \$6,000.00 for each of the minor Claimants. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, ¶¶ 13–16.)

“In

determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest.”

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and 5) the amount of attorneys' fees and other transaction costs being requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Regarding

attorney's fees, the Rodriguez Family executed a retainer agreement with their counsel for a 45% contingency fee. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, Attach. 13a, ¶ 4.) The requested attorney's fee is 40% of each of the Claimants' gross recovery after costs. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, ¶ 13a.) Counsel's declaration includes details about their legal experience and their work in this litigation. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, Attach. 13a, ¶¶ 4–7.) Considering this evidence, the court finds that the requested attorney's fees are reasonable.

The

remaining \$6,000.00 for each of the Claimants will be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court.

(See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, ¶ 18b(2).) Upon review, the court finds that the amount awarded to each of the Claimants to be reasonable and finds the disposition of the funds is proper.

However,

the petitions incorrectly state that Defendants will pay \$360,000.00 to each of the Claimants. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, ¶ 10b.) The total amount of the settlement is \$360,000.00, with \$160,000.00 for Estrada, \$160,000.00 for Rodriguez, and \$10,000.00 for each of the minor Claimants. (See, e.g., Pet. Re: Armando Geovani Rodriguez Estrada, Attachs. 11b(5)–11b(6).) The court directs Estrada to correct the error in paragraph 10 of the petition for each of the minor Claimants' petitions.

Accordingly,

the court DENIES the petitions to confirm minor's compromise WITHOUT PREJUDICE and ORDERS Estrada to FILE a corrected MC-350 PETITION for each minor Claimant.

CONCLUSION

For

these reasons, the petitions for approval of minor's compromise are DENIED WITHOUT PREJUDICE. Plaintiff/petitioner

Abigail Yosabeth Estrada Farias is ORDERED to FILE a corrected MC-350 PETITION for each of the minor plaintiffs/claimants Armando Geovani Rodriguez Estrada, Juan Julian Rodriguez, Bella Yesenia Rodriguez, and Bonnie Bonita Rodriguez.